
Journal

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Court

SINDH HIGH COURT

Date

1947-12-22

Appeal No.

SUIT NO. 296 OF 1941

Judge

TYABJI, C J.

Parties

MALIK JIAND KHAN—PLAINTIFFJL, VERSUS PROVINCE OF SIND—DEFENDANT

Lawyers

DINGOMAL NARAINSING FOR PLAINTIFF.B.H LULLA AND E.V. CASTELLINO FOR DEFENDANTS NOS. 1 AND 2.

Statutes

MUHAMMADAN LAW

Judgment

The plaintiff in this suit seeks a declaration that he is a legitimate son of Safar Khan; a paternal-uncle of Malik Bula Khan son of Dodakhan (the second Bula Khan), a first class Jagirdar holding extensive Jagir lands-in the districts of Adu, Karachi and Hyderabad, who died on 22nd January, 1939. Malik Bula Khan was the last of a long line of Maliks who, as "gadinishins" or "pagdars" were entitled to certain lands and privileges and lived at Thano Bula Khan. The British conferred a Jagir on Malik Bula Khan son of Hyder Khan (the first Bula Khan) and under the terms of the grant the Jagir was to be regranted on the death of each Jagirdar to the senior lineal male descendant of the first grantee. The first Bula Khan died on 31st May, 1853. On the death of the second Bula Khan in 1939 the plaintiff claimed the Jagir as a son of Safar Khan, who was a grandson of the first grantee, there being no other lineal male descendant of the first grantee. It was, however, disputed that the plaintiff was a legitimate son of Safar Khan, although it was admitted that he was a son of Safar Khan by a woman named Hurmat. An inquiry was held by the Collector (Mr. Nur Nabi) under the Pensions Act of 1871, and on 23rd October, 1939, the Collector decided that the plaintiff, though a son of Safar Khan was not a legitimate son, as the plaintiff's mother Hurmat was not legally married to Safar Khan, and the plaintiff was not, therefore, entitled to the Jagir. An appeal was made against this decision to the Revenue Commissioner (Mr. Clee), who by his order, dated 3rd June, 1940 decided in favour of the plaintiff, holding him to be a legitimate son of Safar Khan, and directed that the Jagir be conferred upon the plaintiff. The Government of Sind appealed against that decision, and the matter was referred to the Revenue Tribunal which on 27th March, 1941, passed the following order: "The Tribunal considers that the respondent Alibuz Khan alias Malik Jiand Khan has not clearly established the fact of his legitimate birth and think that the Collector's order was proper. They are therefore, pleased to set aside the order of the Revenue Commissioner and to confirm the order of the Collector of Dadu.

* K The Jagir will accordingly lapse to the Government. If, however, the respondent establishes the fact of his legitimate birth in a Court of law in proceedings to which the Government is made a party, the Jagir should be restored to him. If Government's permission is necessary to file the requisite suit in a Court of law, the said permission should be granted." . . .

F c - » J.

. s f r .

2. In consequence of this the plaintiff filed this suit on 13th August, 1941. In the plaintiff's case is stated, as follows: .

i A "9. The plaintiff submits that his mother Mst. Hurmat was lawfully married to his father Malik Safar Khan, the Nikah ceremony having been performed about 70 years ago. Both his father and mother lived as husband and wife until the death of his father, in about 1892. Thereafter, she continued to remain his widow ' she being still alive. Further the plaintiff was always acknowledged by his father as his legitimate son and both the plaintiff and his mother were always looked upon and treated by all the family members including the deceased Malik Bula Khan as the widow and legitimate son of deceased Safar Khan. " 10. The plaintiff further submits; that as matter of fact, the plaintiff's father Safar Khan married only one wife and she was Mst.

Hurmat and likewise Mst. Hurmat had only one husband and that was Malik Safar Khan.

11. The plaintiff claims, that he is the legitimate son of Malik Safar Khan and a direct male

descendant of the original grantee Malik Bula Khan. 20. J 3* Defendant 1, the Province of Sind, and; defendant No.2, Mst. Acherbai, a sister; of the; last Malik Bula Khari, have disputed the plaintiffs contention, that Mst. Hurmat was the wife, of * Safar Khan and the plaintiff was a legitimate son. In their written statements the defendants also, challenged the jurisdiction of the Court and the maintainability of the suit as framed, and raised, other legal defences, and the following issues were framed: Has the Court jurisdiction? /, T - 1 f - 1 (2) Is the suit barred: under S.4 of Pensions Act, 1871? h.

> i (3) Whether the notice referred to in para. 12 of the plaint is / invalid? (4) Whether the plaintiff is the legitimate son of late Safar Khan? (4-A) Is the suit as framed maintainable? ' - 1 r J r ' t F * i

1 l (5) Is the plaintiff entitled to the relief claimed? i- » 4. Eighteen witnesses have been examined on behalf of the plaintiff. It is contended on his behalf that he has proved the marriage of Safar Khan and Hurmat, and also proved that Safar Khan and the members of the Malik family had throughout acknowledged the plaintiff as a legitimate son of Safar Khan. Seven witnesses have been examined on behalf of the defendants to deny those allegations.

t 5. Before dealing with the contentions of the parties, it appears advisable first to set out certain undisputable facts, which were either admitted or were not seriously questioned by the parties after the evidence in the case was led, and which are clearly established.

6. The following geneological table produced by the plaintiff shows the relationship of the successive Maliks of Thano Bula Khan: ARI Hamal Baprah Badar < Tharum .

Dadan . t K Malik Bula Khan Haider Khan Malik Bula Khan (d.1853) (first grantee) Malik Jiand Khan Malik Doda Khan (d.1907) Safar Khan (d.1892) Haji Khan (died with out issue) Harum Khan Malik Salar khan Jhunjar Khan (Left seven daughters) Malik Bula Khan (died 1939 with, out issue). .

Plaintiff The British conferred the Jagir upon Malik Bula Khan son of Haider Khan, who died on 31-5-1953. He was succeeded by Jiand Khan, who died without any male issue, whereupon the Jagir was conferred upon Salar Khan, the younger brother of Jiand Khan, Salar Khan was succeeded by his son Doda Khan, who died in 1907, when Bula Khan the son of Doda Klian succeeded. As has been mentioned before, Bula i' Khan left no male issue. Safar Khan, the second son'of-'Saftar Khan, died some years later, and Jhunijar Khan, the fourth son of Salar Khan, died still later on 12-3-1932. , 7. The Maliks of Bula Khan and the members of their family have for many generations had their principal residence at Thano Bula Khan within what is known as the "Haveli" of the Maliks, each member of - F i the family having a portion of the "Haveli" allotted to him by the reigning Malik.

8. When Safar Khan was a young man, there was a young slave girl, Hurmat, who was working as a maid-servant inside the "Haveli". She belonged to the caste of Gadas who were mostly labourers. Her father Tahir was also a house-hold servant in the "Haveli" and her other relations were dependants of the Malik family. Safar Khan became enamoured of Hurmat, and eloped-with her without the knowledge or permission of the Malik or of Hurmat's relations. As plaintiff's counsel elicited from Pir Bakar Shah, Hurmat had been betrothed by heir parents to one , Master : Masood, who was an employee in -the Post Office at Thano Bula Khan. It is difficult to say exactly when this occurred but all parties have accepted the suggestion of Mr. Dingomal, the learned counsel for the plaintiff, that this took-place about 1373. Safar Khan took , Hurmat away to a place called Dadhoon, which was some 5 miles further away from Thano Bula Khan than Kotri* Kotri being some thirty miles away. This elopement caused great offence to. the. Maliks

and the members of the family, and, Safar Khan lived away at Dadhoon for several years. A male and a female child were born to Safar Khan and Hurmat while they lived at Dadhoon, but these children died very young. Safar Khan did not come back to Thanobula Khan for several years after the elopement.

10. It is clear that when Safar Khan returned to Thanobula Khan with Hurmat, he did not live within the "Haveli" of the Malik, as the other members of the family did, but he lived, with Hurmat, in a hut some distance away from the "Haveli" a locality where the neighbouring houses were occupied by Hindus, Khaskhe and Gadas. Some attempt was made by some of the earlier witnesses, examined on behalf of the plaintiff, to show that when Safar Khan came back to Thanobula Khan he first stayed for sometime in the "Haveli" of the Malik with Malik Doda Khan; but the evidence of the witnesses subsequently examined on behalf of the plaintiff, for instance of Hafiz Sumar (Exh.31) and Natho (Exh. 26) shows that that was not true, and that Safar Khan lived, as the defendants assert in a separate house outside the "Haveli" from the time when he returned to Thanobula Khan up to the time when, a couple of days before his death, he was taken into the "Haveli" by Malik Doda Khan where Safar Khan died. Natho (Exh.26) a maternal-cousin of Hurmat, who would necessarily know the fact, admitted: "After marrying, Hurmat lived at Thanobula Khan with Safar Khan in a separate house, separate from Bula Khan's house," but "J.F. says (11 J.F. v. 1 r. j. t. 1 r. 1 i. L. x. 1 * 1 r. r. A. r. 1 \ 1 LV J and this fact was not disputed on behalf of the plaintiff in the subsequent stages of the suit. 'J. v. 10. The plaintiff was, born at Thanobula Khan on 21-6-1877, and named Ali Bux. Safar Khan and, Hurmat had another son, Hussain Bakhsh, who was younger than the plaintiff, who lived with Hurmat until his death at the age of about 35 in 1926 or 1927. 'i n/ . y < . v J V- } h , V t ' 1 1 - i i.

11. It is admitted that when Safar Khan was about to die, a couple of days before he actually died, in 1892, he was removed into the "Haveli" by the Malik Doda Khan. It is alleged on behalf of the plaintiff that Hurmat and her two sons, the plaintiff and Hussain Bux, lived in the "Haveli" during the period of 1 day after Safar Khan's death, but this has been strenuously denied by the defendants.

Except for this, however, it is clear that after his elopement with Hurmat, Safar Khan did not ever live inside the "Haveli" and that Hurmat and her two sons had never been the inmates of the family residence of the Malik's.

12. In February, 1890 the plaintiff was sent to a Mulla School at Thanobula Khan, which was in charge of Mulla Haji Hamid, where the plaintiff was taught to read the Kuran and the first Sindhi Primer. The register of the school, Exh.9, shows that he attended the Mulla School from February, 1890 to March, 1891, and that his name was entered in the register as "Ali Bakhsh put (son of) Safar Khan Baprani." There was a District Local Board School at Thanobula Khan, in which Jhunjar Khan, the youngest brother of Safar Khan, was a teacher. The register of this school, Exh.20, and the entries therein, Exhs.21 and 22, show that the plaintiff joined this school on 10-12-1890 and left it on 31-7-1894. In this register in the column headed "full name of student" the plaintiff's name was entered as "Ali Bux Safar Khan".

According to the evidence of the plaintiff, he had reached the third or fourth Sindhi standard when he left the school.

13. It is clear from the evidence that Hussain Bakhsh, the younger brother of the plaintiff, never went to any school. Nothing is known about what the plaintiff did during the years 1894 to 1901 after he left the school.

* i 14.. On 13-4-1901 the plaintiff joined the police, as a mounted (camel) constable, and as the plaintiffs evidence shows, he obtained* this job with the help of Jehan Khan, a younger brother of Pir Bakar Shah and an Honorary Magistrate. On the service sheet, Exh. 10, plaintiffs name was entered as NALI Bakhsh Safar Khan". The plaintiff continued to be a police officer until he retired in 1929. He has stated: h "I retired in 1929 as Mounted Head Constable. My pay before I retired was Rs.36 per month. I got besides Rs.25 or Rs.30 as horse allowance." It may be mentioned here that there were three other police officers, recruited from the families of the Jagirdar of the locality, viz., Sheril Khan, Rahim Khan and Mahmed Khan each one of whom was appointed Sub-Inspector when he joined the police.

15* The names of all, male as well as female, members of the families of Muslim Jagirdars and with an honorific suffix, such as 'Khan' in the case of males, and 'Bair' in the case of females showing the status of their families. It would be disrespectful and contrary to custom to refer to such a person by a name without the suffix. Thus, the sons of Salar Khan were called and always referred to as Doda Khan, Safar Khan, Haji Khan and Jhunjar Khan. Defendant No.2, who is a daughter of Doda Khan, was called Achar Bai, and the name of Bula Khan's wife was Nazi Bai. It is significant that the plaintiff's name as entered in the school registers Exhs.9, 21 and 22, and in the service sheet, Exh. 10, was "Ali Bux". It is clear that the plaintiff was throughout called "Ali Bakhsh", and not "Ali Khan" or "Ali Bakhsh Khan". The first witnesses examined by the plaintiff, - Utumal and Chaturmal, throughout referred to the plaintiff as "Ali Bux". The plaintiff was throughout referred to by Utumal as "Hussain" and by other witnesses as "Hussain Bukhsh" never as "Hussain Bukhsh Khan." A point was made of this while the plaintiff was being examined, and, thereafter, the plaintiff attempted to make out what was clearly untrue, that he was also called Ali Bux Khan sometimes. He stated: "My name was Ali Bukhsh. Jiand Khan is the name which they "gave me- at the Dastarbandi ceremony I was also sometimes called Ali Bukhsh Khan by people- of my Rai. When my name was asked I said Ali Bukhsh and. not Alibuxkhan, because I do not like to call myself Khan. I gave my name alias as Jiand ; .

Khan and not Jiand because that was the name they gave to me. I used to be called Alibakhsh and also Ali Bux Bhan by . j people." - * ' ; i k e 1 i f p t * 1 j * It is also clear that, the plaintiff's mother .was always called "Hurmat" only. (His Lordship quoted ,a portion of deposition of one witness and proceeded:) J a Similarly, plaintiff's wife has been throughout called Mima.

P * * .16. This Mima was a woman of the Meraji. Birohi caste, admittedly of a very low status, - who .was a widow when the plaintiff married her in 1918. The plaintiff admitted; t * ? r -1 . -pj-i v, * 1 T b r * * He stated* 1 * I* "It is true that girls in the families of Maliks are generally married to persons nearly related to them, or to men in-the families, of other MaHks." ' .

1 - 1 r Fa "I f- f T.

*?I do not know whether girls ,are frequently married 'to men much. younger than themselves," v A l.

1-* but it is r a matter of common knowledge, that, that" is the case. The plaintiff admitted that although defendant Nb.2, Aclier Bai, was a cousin of the plaintiff who;, had. never, married, there was, never any question of his marrying Acher ,Bai or any other.

girl from . the neighbouring ,family of the Hamalani Maliks. Admittedly there had been many mariages between members of the.

family of the Hauialani Maliks and members of the,family-.ofthe Maliks of Thano Bula Khan. ,v v*

.7 "< He attempted to explain this by saying" : ; j " Acharbai did not wish to.: marry, ' , and I did not wish to marry her, and that is why I did not j marry Her.....I never offered, or sent a proposal for any Hamalani girl- I have never sent a. proposal, for; any .other girls', except Mima. Neither Doda Khan, nor Bula Khan r of whom was 18 or. 19 years old, there never:, was any question ,of the plaintiff's son/ marrying one of the daughters of Jhunjar Khan". : .

IF * 17. It is also clear that Hurmat, who died in 1942* was a very poor woman, who had to support herself by working as <"a labourer and as a midwife; This is not only clear from "the evidence given by the defendant's witnesses, but from the evidence , of Sub-Inspector' Lutf Ali Exh .45, one of the plaintiff's witnesses, who admitted: : 1: .

"In 1910 my wife and my children were living with me at Thano Bula Khan. I/ came to , know t where the. plaintiff's house was.

41 saw the plaintiff's mother then. Plaintiff's mother was then working as midwife m . » " H " It is obvious that family prestige and custom would not ordinarily, permit one of the ladies of a family like the Malik family, who was "i ii * ' IL i J acknowledged as a member of the family, to go about working as a midwife or a labourer. -

18o Another circumstance on which great reliance is placed by the defendants, as weighing heavily against the plaintiff's contention, is the location of the graves of the plaintiff's brother Hussainbux, and the plaintiff's wife Mima in the graveyard at Thano Bula Khan. In this graveyard there is a portion reserved for the graves of the family of the Pirs, and another portion which is reserved for the graves of the members of the family of the Maliks. The graves of the members of the family of the Maliks are on a raised platform, all built up in a very similar manner. These graves are in a line running east to west. The platform on which the graves are built is known as the "Thalia" of the "Maliks". In each of these graves the body is placed in the customary manner on its right side with the head to the north and the feet to the south, so that it faces the west. The row of graves progressed from east to west, that is to say, each member of the family who died was buried next to the person who had died last, immediately next and to the west of the last grave in the row. The evidence clearly shows, and there is no dispute about this, that the last persons to be buried in the row on the Thalia in order were Salar Khan, Safar Khan, Doda Khan, Haji Khan, Jhunjar Khan, Bula Khan and Nazilbai. The grave of Nazilbai is the last and the western most one, and the row ends here, as the portion to the west is reserved for the Pirs. It is clear as the evidence and the photographs show that the portion immediately to the north of the main row on the Thalia is part of the . portion reserved for the family of the Maliks, where there is room for another row of graves, and in the ordinary course the Thalia would be extended, as and when more graves were built, in the row and immediately to the north of the existing main row. In this row to the north of the Thalia, and near its eastern end, where it would commence, there are three very .small graves. These are the three graves of the children of Jhunjar Khan, each of whom died when a few months old. To the south of the Thalia and immediately to the south of the graves in the middle of the row on the Thalia there are three unbuilt full sized graves, which are of Husseinbux, Mima and Hurmat. Further, to the east of these three graves, in the same row to the south of the Thalia, there are other graves of Gadas, and to the south of these are the graves of Palaris of the Balfat caste. Husseinbuxsh, the brother of the plaintiff, died in 1926 or 1927, that is before Haji Khan, Jhunjar Khan, Bula Khan and Nazilbai. Mima died after Haji Khan and before Jhunjar Khan. There is no question about Jhunjar Khan's children having been buried as members of the family of the Maliks in a portion reserved for the family. The explanation of the fact that these children were not buried in the main row is that the graves of only adult members of the family would be made in the main row, and as is usual, the smaller graves of children would be placed separately. The fact that Hussainbux and Mima were not buried in the main row on the Thalia would show that they were not regarded as members of the family. (After

discussing the evidence of some witnesses his Lordship continued:). It is argued on behalf of the defendants with considerable force that if Safar Khan had been married to Hurmat, and the marriage had been acknowledged by the Malik family, Hussain Bux the son of Safar Khan would have been treated as a member of the Malik family and would have been buried next to Doda Khan, and that Mima, the wife of the plaintiff would have been buried next to Haji Khan on the Thalia, and not "with the uncles and aunts" of Sumar, that is among the Gadas.

19. (His Lordship next referred to certain incidents which had been relied upon as significant and proceeded further:) Another admitted fact is that there was no question or controversy ever raised as to whether the plaintiff was or was not a legitimate son of Safar Khan, before Bula Khan's death. This fact was admitted and in fact asserted by both sides, and each side in its turn attempted to base, an argument on it. It is also admitted that immediately after the death of Bula Khan the plaintiff as well as some other persons, including Sher Dil Khan, a member of the family of the Hamalani Maliks, laid claims to the Jagir. Pir Bakar Shah the acknowledged Pir of the family of the Maliks, of Thano Bula Khan, who had officiated at the ceremonies when the pag was conferred on Malik Bula Khan and his predecessor Malik Doda Khan, refused to support the plaintiff's claim. He has stated: J T 1 ~ . "As we are the Pir Murshids of the Malik family, we have been / the persons who tied the turbans, conferred the TPagT on the Maliks. I tied the 'Pag' on Doda Khan and Bula Khan. The Hindus and Mussalmans came to me after the death of Bula Khan n m and asked me to. confer the 'Pag* on the plaintiff * urging that unless the Pag was so conferred, the Jaghir would be confiscated and all would suffer. I, however, refused, as I was not willing to lend myself to an untruth. The plaintiff's own people, the Babranis and Hamalanis, did not went me to tie the turban on r -iV the plaintiff,. as they stated that the plaintiff was not the legitimate, son of Safar Khan." ' - 1 r ' t Usually the Dastarbandi ceremony, when the Pag is conferred on a, successor, takes place within a short time of the death of the Pagdar, and the previous Dastarbandi ceremonies of the Maliks- of Thano Bula Khan had taken place at Thano Bula Khan. In this case no Dastarbandi ceremony took place until 26-9-1939, when a gathering took place at , Jhimpir, at the instance of the plaintiff, at which the Pag was conferred on the plaintiff by the plaintiff's supporters. The plaintiff has admitted: .

"I am the only Malik among the Thano Bula Khan Maliks whose Dastarbandi ceremony took place at Jhimpir. In the cases of Bula Khan.....The delay in the Dastarbandi ceremony in my case, which took place 8 months after Bula Khan's death, was because there was 'Shor1 (dispute and trouble) in this case."

* i 20* Another circumstance which must be borne in mind, when the * evidence on the main question in the case is considered, is that it would obviously be to the interests generally of the people living at Thano Bula Khan and those connected with them to have somebody to succeed to the Jagir, and particularly would this be the case with those connected with the family of the last Malik. It is not, therefore, difficult to understand that a person like the plaintiff who was undoubtedly connected with the Malik family, . should receive a great deal of support when he claimed the Jagir and that there should be many- people .who greatly desired that the plaintiff should succeed.

T 4 T 21. I next come to the question whether the plaintiff has succeeded in proving the Nikah which, it is alleged, took place between Safar Khan and Hurmat at Kotri, somewhere about 1873. There is only one witness Chatur, Exh. 18, who has been examined as a witness of the marriage, and it is quite impossible to regard the evidence of this witness as true. (His Lordship discussed his evidence and rejected it as wholly false.) There is no other evidence of the fact of the solemnisation of the marriage and the plaintiff has wholly failed to prove this part of his case.

[22], I next turn to the evidence produced by the plaintiff in support of his contention that he was

always acknowledged by his father as his legitimate son, and that the plaintiff and his mother Hurmat were always looked upon and treated by all the family members, including deceased Malik Bula Khan, as the widow and legitimate son of deceased Safar Khan. As regards the law applicable to proof of marriage by indirect evidence by acknowledgment, all that is necessary is to refer to the statement by the Privy Council in 48 Cal. 856 at p.864 where their Lordships (Lord Dunedin) stated: "Before discussing the subject, it is as well at once to lay down with precision the difference between legitimacy and legitimation. Legitimacy is a status which results from certain facts. Legitimation is a proceeding which creates a status which did not exist before. In the proper sense there is no legitimation under the Muhammadan Law. Examples of it may be found "in other systems. The adoption of the Roman and the Hindu law effected legitimacy. The same was done under the Canon Law and the Scotch Law in respect of what is known as legitimation per subsequens matrimonium. By the Muhammadan Law a son to be legitimate must be the offspring of a man and his wife or of a man and his slave; any other offspring is the Zina, that is, illicit connection, and cannot be legitimate. The term 'wife' necessarily connotes marriage; but, as marriage may be constituted without any ceremonial, the existence of a marriage in any particular case may be an open question. Direct proof may be available, but if there be no such, indirect proof may suffice. No one of the ways of indirect proof is by an acknowledgment of legitimacy in favour of a son. This acknowledgment must be not merely of sonship, but must be made in such a way that it shows that the acknowledgor meant to accept the other not only as his son, but as his legitimate son- It must not be impossible upon the face of it; i.e. it must not be made when the ages are such that it is impossible in nature for the acknowledgor to be the father of the acknowledgee, or when the mother spoken to in an acknowledgment, being the wife of another, or within prohibited degrees of the acknowledgor, it would be apparent that the issue would be the issue of adultery or incest. The acknowledgment may be repudiated by the acknowledgee. But if none of these objections occur, then the acknowledgment has more objections than a mere evidential value. It raises a presumption of marriage a presumption which may be taken advantage of either by a wife claimant or a son claimant. Being, however, a presumption of fact, and not juris at de jure, it is, like every other presumption of fact, capable of being set aside by contrary proof. The result is that a claimant son who has in his favour a good acknowledgment of legitimacy is in this position. The marriage will be held proved and his legitimacy established unless the marriage is disproved. Until the claimant establishes his acknowledgment the onus is on him to prove a marriage. Once, he establishes an acknowledgment, the onus is on those who deny a marriage to negative it in fact."

' ° 1 f ij * 23. All the important decisions were recently reviewed by Kania, J.

in AIR 1944 Bom. 213, the head note of which is as follows: .

F * , V x ' 1 " "Amongst Muhammadans no particular ceremonies are required for a marriage. The question whether there was a marriage or not is one of fact.. That fact may be proved by direct evidence, by calling witnesses who were present at the time of producing 1. the Nikahnama signed by the parties. It may be proved by indirect evidence which may raise a presumption of marriage. The question of marriage is one of fact and the presumption does not arise merely from the fact of some years of cohabitation. It is required to be proved that the man treated the woman as his wife and had recognized her as such, not merely casually but with the intention and acknowledge of giving her the status of a wife. In respect of acknowledgment of a son it is further necessary that the acknowledgment must be as of a legitimate son. Mere acknowledgment of paternity is not sufficient to raise a presumption of legitimacy or marriage. In the event of disproof of marriage; no amount of acknowledgment can make the presumption override the fact-and persuade the Court to decide the matter on the presumption. If marriage is proved no question of acknowledgment remains to be considered. Only when by reason of time or circumstances the question of marriage is in a state of being unproved the question of acknowledgment arises, and ; in dealing with that question acknowledgment arises, and in ,

dealing with that question satisfactorily evidence has to be led of clear acknowledgment. If the plaintiff leads such" evidence of acknowledgment of the woman as his wife or acknowledgment of a child as his legitimate child, in the absence of proof by the, defendant the presumption of marriage will hold good and the , plaintiff should be considered as having, discharged the burden of proof." It is clear that the evidence must be clear that the . individual in question 'was acknowledged to be not only a son but a legitimate spn, and that the existence of a valid marriage was not in fact negatived before the1 presumption in favour of the marriage and legitimacy could arise. A large number of rulings were discussed before me; but I consider it quite unnecessary to refer to them, and I barely mention that they included 3 MIA , 285, 22 S L R 309* *26 SLR 111; A I R 1937 P C 201; 31 S L R 71; 21 I A 56 and 10 Lah. 725..

* r * 24. A very large number of witnesses have been examined on behalf of the plaintiff to prove the alleged acknowledgments. But very little of this evidence can even be relied upon as in any way bearing on the fact in question and even that is on the fact of it quite valueless.

(Discussion of evidence omitted.) _ i> 25. Having dealt with the evidence given by the plaintiff and stated my reasons for holding that the plaintiff had wholly failed to prove the marriage of Safar Khan with Hurmat, and also wholly failed to prov that - the plaintiff was acknowledged as a legitimate son of Safar Khan, I now turn to- the evidence given by the defendants, which, in my view, clearly established that the plaintiff was not and was never acknowledged to be a legitimate son of Safar Khan. (After discussing the evidence, his Lordship concluded as follows:) 26. To sum up the position, the evidence given on behalf of the plaintiff appears to me to be of very little value. On the other hand the evidence of the family witnesses, Acherbai, Baidj Khan and Mahomed Amin Khan, which there is no reason whatever for disbelieving and which is very strongly supported by the evidence of Pir Bakar Shah, disproves the plaintiff's claim. The most important evidence, I consider is the evidence of the admitted or undisputed circumstances, to which I have referred in the earlier part of my judgment, which, it appears to me, make it quite clear that the plaintiff and his brother Hussein Buksh were not regarded as members of the Malik family and were not treated as such. ' 27, I, therefore, answer the main issue in this case (issue 4) in the negative, that is, against the plaintiff. This suit is accordingly dismissed with costs. ' Suit dismissed.

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